

SENATE No. 2322

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to ensure adequate and affordable energy.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>2/10/2025</i>
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>3/14/2025</i>

SENATE No. 2322

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 2322) of Bruce E. Tarr and Steven George Xiarhos for legislation to ensure adequate and affordable energy. Telecommunications, Utilities and Energy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2180 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to ensure adequate and affordable energy.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Not later than September 30, 2026 and every 3 years thereafter, the
2 secretary of energy and environmental affairs or a designee shall publish a comprehensive
3 energy plan as established under executive order 569 which shall include and be based upon
4 reasonable projections of the commonwealth’s energy demands for electricity, transportation and
5 thermal conditioning and shall also include strategies for meeting those demands in a regional
6 context, prioritizing meeting energy demand through conservation, energy efficiency and other
7 demand-reduction resources in a manner that contributes to the commonwealth meeting the
8 limits for 2030 and 2040 pursuant to subsection (b) of section 3 of chapter 21N of the General
9 Laws.”

SECTION 2. The department of energy resources in conjunction with the executive office of environmental affairs shall monitor available supplies and projected costs of energy so as to determine if within 12 months there will be a foreseeable deficiency in the amount of energy reasonably expected to meet demand, or that one or more conditions will be reasonably expected to cause an increase to consumers of more than ten percent, provided that if either of these are so determined, the department of energy resources in conjunction with the executive office of environmental affairs, shall develop a contingency plan to prevent, mitigate, or otherwise address their impacts. Such contingency plan shall contain, to the maximum feasible extent :

- a) the cause of such deficiency or cost increase and the probability that it will occur
- b) one or more actions than can be undertaken on a timely basis to prevent, mitigate, or otherwise address one or more of these impacts
- c) identify the appropriate entity of state government to take such actions
- d) an estimated time frame for such actions to be implemented

The development of such contingency plan shall include not less than one public hearing, the ability to receive written testimony, and consultation with the department of public utilities, the department of telecommunications and energy, the clean energy center, the attorney general of the commonwealth, and, to the extent possible and where relevant, the independent systems operator for the New England. Said plan shall be filed with the Joint Committee on Telecommunications, Utilities, and Energy, and the clerks of the House and Senate, whom shall post it electronically for public inspection.